

(Cal. Ed. Code, § 1040(b)(2).)

Here, the statutory purpose underlying the privilege supports nondisclosure absent consent from the credential holder. Defendant has not provided consent and, in fact, has joined in CTC's opposition to disclosure.

The record further establishes that CTC has produced all documents to which Plaintiff is entitled under the Education Code, albeit with redactions required by law. To that extent, the Motion is partially moot.

Having reviewed the moving papers, opposition, reply, and all supporting materials, and having applied the relevant statutory provisions and governing legal standards, the Court finds that Plaintiff has not established good cause for the relief sought. Accordingly, the Court rules as follows.

Ruling

Good cause not having been shown, Plaintiff's Motion to Compel Non-Party California Commission on Teacher Credentialing ("CTC") to Produce Records Subpoenaed by Plaintiff is **moot** to the extent CTC has already produced responsive documents, and is otherwise **denied**. CTC is ordered to prepare and electronically file a proposed order consistent with this ruling, attaching a copy of this tentative ruling, within ten (10) days of the hearing

16. 9:01 AM CASE NUMBER: C24-00731

CASE NAME: KEVIN RUBIO VS. LA AURORA LIQUOR

***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF'S RESPONSES TO DEFENDANT'S DISCOVERY REQUESTS**

FILED BY: LA AURORA LIQUOR

TENTATIVE RULING:

Summary

This Court will conduct a hearing on:

(1) An Order to Show Cause as to Why this Case should not be Dismissed for Plaintiff Kevin Rubio's ("Plaintiff") Failure to Appear at the Case Management Conference on November 17, 2025. Per the Court's Notice mailed to Plaintiff Kevin Rubio on November 17, 2025, Plaintiff is ordered to appear at the November 26, 2025 to Show Cause as to why he failed to appear at the Case Management Conference. He is ordered to appear at 9:00 a.m, or soon thereafter, trailing the hearing on this Motion. He may appear via Zoom.

(2) Defendant La Aurora Liquor's Motion to Compel to Compel Responses from Plaintiff to Defendant's Form Interrogatories, Special Interrogatories, and Request for Production of Documents, Set One. With respect to Defendant La Aurora Liquor's ("Defendant") Motions, no timely responses were served by Plaintiff, despite an extension of time granted to Plaintiff's former counsel. Furthermore, Plaintiff did not file a timely opposition to this Motion. Accordingly, Defendant's Motions are **granted**.

Background

This is a personal injury case where Plaintiff alleges that he was assaulted and battered by an unknown and unnamed employee of Defendant at its La Aurora Liquor Store located at 3305 Willow Pass Road, Bay Point, California on or about April 6, 2022. The attack allegedly caused him to suffer injuries, including emotional distress.

Defendant propounded initial discovery on Plaintiff through his counsel, Corey Hankins, on March 27, 2025. Mr. Hankins requested an extension because he had difficulty reaching Plaintiff. Plaintiff was granted two extensions to respond to discovery, the latest extension required verified responses no later than May 30, 2025. Plaintiff did not serve timely responses.

On July 5, 2025, Defendant filed this Motion to Compel Responses from Plaintiff to Defendant's Form Interrogatories, Special Interrogatories, and Request for Production of Documents, Set One. The Motions were supported by Declaration of Counsel Akhila Ganapathy, and a Memorandum of Points and Authorities. Service was accomplished on Plaintiff's former counsel, Corey Hankins. Mr. Hankins withdrew as Counsel on October 30, 2025.

Defendant's Counsel represents that Plaintiff has not served responses to the requested discovery, which is the subject of the Motion. Defendant also represents, and the Court's files confirm, that Plaintiff did not file a timely opposition to this Motion, which was due on November 13, 2025.

Analyses

Procedural Rules relating to Self-Represented Litigants

The Court is aware that Plaintiff is proceeding without an attorney in his lawsuit. However, a self-represented party "is to be treated like any other party and is entitled to the same, but no greater consideration than other litigants and attorneys." *Williams v. Pacific Mutual Life Ins. Co.* (1986) 186 Cal.App.3d 941, 944. Thus, as is the case with attorneys, self-represented litigants must follow correct rules of procedure. *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247; see also *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-85 ("mere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation."); see also *Leslie v. Board of Medical Quality Assurance* (1991) 234 Cal.App.3d 117, 121 (self-represented parties are held to "the same 'restrictive procedural rules as an attorney'"). Self-represented litigants are not entitled to special treatment and are required to follow the procedural rules that govern civil litigation. *McComber v. Wells* (1999) 72 Cal.App.4th 512, 522-523.

Nevertheless, "[t]rial judges must acknowledge that in *propria persona* litigants often do not have an attorney's level of knowledge about the legal system and are more prone to misunderstanding the court's requirements.' [Citation.] When one party has counsel and the other does not, the trial court 'should monitor to ensure the in *propria persona* litigant is not inadvertently misled, either by the represented party or by the court. ... [S]pecial care should be used to make sure that verbal instructions given in court and written notices are clear and understandable by a layperson. This is the essence of equal and fair treatment, and it is not only important to serve the ends of justice, but to maintain public confidence in the judicial system.'" *Petrosyan v. Prince Corp.* (2013) 223 Cal.App.4th

587, 594. Applied here, there is no evidence that Plaintiff was misled by the Court or Defendants.

Non-Opposition

California Rules of Court, Rule 8.54(c) states, “A failure to oppose a motion may be deemed a consent to the granting of the motion.”]; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is “well-within” the court’s discretion to determine that such failure is “tantamount to a concession that its position in the litigation was not substantially justified.”] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].) Applied here, the Court finds that failure to timely oppose this Motion is a deemed to be Plaintiff’s consent to the granting of Discovery motions.

Ruling

Good cause appearing, the Court **grants** Defendant’s Motion to Compel responses to Discovery and will execute the proposed order lodged on June 6, 2025, attaching a copy of this tentative ruling.

17. 9:01 AM CASE NUMBER: C25-01094

CASE NAME: FRANKLIN CHERRY VS. CHARMAINE COLLADO

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSE FROM DEFENDANT
CHARMAINE C. COLLADO TO SPECIAL INTERROGATORIES, SET ONE**

FILED BY: CHERRY, FRANKLIN P.

TENTATIVE RULING:

This Motion was withdrawn by Plaintiff Franklin Cherry on November 12, 2025.